[Public Land Order 1070]

WASHINGTON

REVOKING EXECUTIVE ORDERS NO. 8915 OF OCTOBER 11, 1941, AND NO. 8992 OF DECEMBER 26, 1941, WHICH RESERVED LANDS FOR USE OF WAR DEPARTMENT AS PRACTICE BOMBING AND GUNNERY RANGE

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 8915 of October 11, 1941, and No. 8992 of December 26, 1941, reserving the following-described public lands for use of the War Department as a practice bombing and gunnery range are hereby revoked:

WILLAMETTE MERIDIAN

EXECUTIVE ORDER NO. 8915

T. 18 N., R. 27 E.,
Secs. 20 and 22.

EXECUTIVE ORDER NO. 8992

T. 18 N., R. 25 E.,
Sec. 10, SW¼;
Sec. 14, NW¼.

The areas described aggregate 1,600 acres.

The lands are withdrawn for reclamation purposes by Departmental orders of June 27, 1941, and June 18, 1947.

ORME LEWIS,
Assistant Secretary of the Interior.

FEBRUARY 11, 1955.

[F. R. Doc. 55-1411; Filed, Feb. 17, 1955; 8:45 a. m.]

TITLE 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission

PART 120—ANNUAL, SPECIAL OR PERIODICAL REPORTS

CARRIERS BY PIPE LINE; ANNUAL REPORT FORM P

At a session of the Interstate Commerce Commission, Division 1, held at its office in Washington, D. C., on the 4th day of February A. D. 1955.

The matter of annual reports from carriers by pipe line being under consideration, and it appearing that the changes in existing regulations to be effectuated by this order are only minor changes with respect to the data to be furnished, and that public rule-making procedures are unnecessary:

It is ordered, That the order dated November 18, 1953, in the matter of annual reports from carriers by pipe line (49 CFR 120.61) be, and it is hereby modified with respect to annual reports for the year ended December 31, 1954, and subsequent years, as follows:

§ 120.61 *Form prescribed for carriers by pipe line.* All carriers by pipe line subject to the provisions of section 20, Part I of the Interstate Commerce Act, are hereby required to file annual reports for the year ended December 31, 1954, and for each succeeding year until further order, in accordance with Annual Report Form P (Carriers by Pipe Line), which is hereby approved and made a part of this section.[1] The annual report shall be filed, in duplicate, in the Bureau of Transport Economics and Statistics, Interstate Commerce Commission, Washington 25, D. C., on or before March 31 of the year following the one to which it relates.

(Sec. 20, 24 Stat. 386, as amended; 49 U. S. C. 20)

By the Commission, Division 1.

[SEAL] GEORGE W. LAIRD,
Secretary.

[F. R. Doc. 55-1424; Filed, Feb. 17, 1955; 8:47 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE TREASURY

United States Coast Guard

[46 CFR Parts 10, 12, 39, 43 to 45, 52, 54 to 56, 78, 97, 137, 146]

[CGFR 55-3]

VESSEL INSPECTION REGULATIONS

PUBLIC HEARING ON PROPOSED CHANGES

1. The Merchant Marine Council will hold a public hearing on Tuesday, March 22, 1955, commencing at 9:30 a. m., in Room 4120, Coast Guard Headquarters, Thirteenth and E Streets NW., Washington, D. C., for the purpose of receiving comments, views, and data on certain proposed changes in the vessel inspection regulations as generally described in Items I to IX, inclusive, below.

2. The proposed changes in the vessel inspection regulations, together with the statutory authority for making such changes, are generally described by subjects in paragraphs 4 to 25, inclusive. The Merchant Marine Council Public Hearing Agenda (CG-249), dated March 1955, has been prepared. This Agenda contains the specific changes proposed and where possible the present and proposed regulations are set forth in comparison form, together with reasons for the changes where necessary. Copies of this Agenda have been mailed to persons and organizations who have expressed a continued interest in the subjects under consideration and have requested that copies be furnished them. Copies of the Agenda will be furnished on request to the Commandant (CMC), United States Coast Guard, Washington 25, D. C., so long as they are available. After the extra copies for distribution are exhausted, copies will be available for reading purposes only in Room 4104, Coast Guard Headquarters, or at the offices of the various Coast Guard District Commanders.

3. Comments on the proposed regulations are invited. Written comments containing constructive criticisms, suggestions, or views are welcomed; however, acknowledgment of the comments received or reasons why the suggested changes were or were not adopted cannot be furnished since personnel is not available to handle the necessary correspondence involved. Each oral or written comment is considered and evaluated. If it is believed the comment, view, or suggestion clarifies or improves the proposed regulation or amendment, it is changed accordingly and after adoption by the Commandant the revised regulation is published in the FEDERAL REGISTER. Each person who desires to submit written comments, data, or views in connection with the proposed regulations set forth in the Merchant Marine Council Public Hearing Agenda should submit them so that they will be received prior to March 18, 1955, by the Commandant (CMC), United States Coast Guard Headquarters, Washington, D. C. Comments, data, or views may be presented orally or in writing at the hearing before the Merchant Marine Council on March 22, 1955. In order to insure consideration of comments and to facilitate checking and recording, it is essential that each comment regarding a section or paragraph of the proposed regulations shall be submitted on Form CG-3287, showing the section number, the proposed change, the reason or basis (if any), and the name, business firm or organization (if any), and the address of the submitter. A small quantity of Form CG-3287 is attached to the Agenda. Additional copies may be obtained upon request from the Commandant (CMC), or from any Coast Guard District Commander.

ITEM I—DANGEROUS CARGO REGULATIONS; MISCELLANEOUS AMENDMENTS

4. Various amendments to the Dangerous Cargo regulations have been necessitated because of corresponding changes made in the Interstate Commerce Commission's regulations governing land transportation of the same commodities, inasmuch as R. S. 4472, as amended (46 U. S. C. 170), requires that the land and water regulations be as nearly parallel as practicable. The proposed amendments include provisions for water shipment of new articles of commerce, additional shipping containers, marking and labeling requirements for certain commodities, and editorial changes. The proposed amendment to 46 CFR 146.04-5, commodity list, lists the shipping names of new articles of commerce allowed and deletes or edits the names of those commodities which are no longer applicable to the regulations. The proposed amend-

[1] Filed as part of original document.

ment to 46 CFR 146.05–3 adds a new paragraph regarding mixed packing. The proposed amendment to 46 CFR 146.05–9 revises the present requirements regarding specification containers in outside containers and includes several new requirements. The proposed amendments to 46 CFR 146.20–7, 146.20–9, 146.20–11, 146.20–100, 146.20–200, and 146.20–300, revise the detailed regulations governing explosives to include new definitions for certain classes A, B, and C explosives and provide for the shipment by water of certain explosives, use of additional shipping containers, marking requirements, and editorial changes. The proposed amendments to 46 CFR 146.21–30, 146.21–65, and 146.21–100 revise the detailed regulations governing inflammable liquids to provide for the stowage of inflammable liquids "on deck" on vessels with machinery spaces aft and when carrying explosives, list inflammable liquids which may not be shipped as "limited quantity shipments" and permit the use of new shipping containers for certain inflammable liquids, and other editorial changes. The proposed amendment to 46 CFR 146.2–100 revises the detailed regulations governing inflammable solids and oxidizing materials to permit the shipment by water of certain new inflammable solids and oxidizing materials, use of additional shipping containers for certain articles, and "tween deck" stowage of lauroyl peroxide. The proposed amendments to 46 CFR 146.23–30 and 146.23–100 revise the detailed regulations governing corrosive liquids by listing certain corrosive liquids not subject to exemption by the regulations, as well as to provide for the shipment by water of certain new corrosive liquids and the use of additional shipping containers for certain corrosive liquids. The proposed amendments to 46 CFR 146.24–25, 146.24–85, and 146.24–100 revise the detailed regulations governing compressed gases by prescribing the type of cargo handling gear to be used in loading and unloading cylinders of compressed gas, new inspection requirements for tanks used in bulk shipment of anhydrous ammonia and to permit the use of additional shipping containers for certain compressed gases. The amendments to 46 CFR 146.25–20, 146.25–25, 146.25–100, 146.25–200, and 146.25–400 revise the detailed regulations governing poisonous articles by changing the requirements for radioactive materials, permitting the use of additional shipping containers for class A poisons, class B poisons, and radioactive materials, and editorial changes. The proposed amendment to 46 CFR 146.27–100 revises the detailed regulations governing hazardous articles by permitting the use of additional shipping containers for manganese dioxide and clarifying the requirements regarding the loading, unloading, and transportation of sulfur in bulk.

5. The authority for Dangerous Cargo Regulations is in R. S. 4405, as amended, 4462, as amended, and 4472, as amended; 46 U. S. C. 375, 416, 170. The regulations interpret or apply Public Law 569, 83d Congress, and Executive Order 10402, 17 F. R. 9917; 3 CFR, 1952 Supp.

ITEM II—MARINE ENGINEERING REGULATIONS AND MATERIAL SPECIFICATIONS; MISCELLANEOUS AMENDMENTS

6. It is proposed to amend 46 CFR 52.01–70 to permit the alternate use of empirical formulas in lieu of proof hydrostatic tests for determining pressure ratings of pressure vessels having cross sections which are not circular but are of irregular form. The proposed amendment to 46 CFR 52.05–12 changes the requirements for pressure vessels designed with a factor of safety of four in order that the Coast Guard requirements will be the same as the American Bureau of Shipping rules and the American Society of Mechanical Engineers boiler code rules on the same subject. The proposal deletes the requirement for removal of weld reinforcement for pressure vessels designed with a factor of safety of four, except for pressure vessels subject to temperatures exceeding 800 degrees F. The proposed amendments to 46 CFR 52.20–15, 52.20–20, 52.22–15, 52.24–10, and 52.25–1 to 52.25–50, inclusive, revise the requirements regarding openings and reinforcements in order to have Coast Guard regulations in agreement with similar requirements of the American Bureau of Shipping and the American Society of Mechanical Engineers. The proposed amendments to 46 CFR 52.60–20, and 52.70–10 revise the requirements regarding venting of superheaters and studded or screwed boiler connections. These changes in the requirements conform to the current American Society of Mechanical Engineers boiler code and the American Bureau of Shipping rules.

7. The amendment to 46 CFR 54.03–15 revises the requirements regarding tube sheets in heat exchangers. This change is based on a petition received from a manufacturer of refrigeration heat exchangers. The proposed amendment to 46 CFR 54.03–40, regarding openings and reinforcements is proposed in order to have the regulations consistent in view of the proposed amendments to 46 CFR 52.25–1 to 52.25–50, regarding openings and reinforcements in boilers.

8. It is proposed to amend 46 CFR 55.10–55, regarding lubricating oil systems so that Coast Guard requirements will be the same as similar rules of the American Bureau of Shipping. The proposed amendment to 46 CFR 55.10–70 revises the requirements regarding overboard discharges and shell connections by making mandatory recommended practices previously contained in a Navigation and Vessel Inspection Circular No. 6–48. It is also proposed to clarify the requirements for overboard discharges where piping is led through cargo tanks on tank vessels. This change agrees with the American Bureau of Shipping rules on the same subject.

9. The proposed amendment to 46 CFR 56.01–10, regarding qualification of welders, revises Coast Guard requirements to agree with similar requirements of the Bureau of Ships, Navy Department, and the American Bureau of Shipping. At present welders qualified by the American Bureau of Shipping, the Bureau of Ships, Navy Department, or the Coast Guard are accepted by each other within the limits covered by the qualification tests passed by the welder. The proposed changes were concurred in by representatives of shipyards and manufacturers and have been accepted by the American Bureau of Shipping and the Bureau of Ships, Navy Department. The proposed changes are recommended in order that the present practice of accepting welders may be continued. It is proposed to amend 46 CFR 56.01–70 to require preheating and stress relieving of class II welded pressure vessels when containing liquefied compressed gases for transportation or storage. The amendment to 46 CFR 56.05–5 will require the reinforcement on pressure vessels shall be finished with a smooth crown. This change agrees with the American Society of Mechanical Engineers on the same subject.

10. The authority for regulations regarding marine engineering is in R. S. 4405, as amended, and 4462, as amended; 46 U. S. C. 375, 416. These regulations interpret or apply R. S. 4399, 4400, 4417, 4417a, 4418, 4421, 4426–4431, 4433, 4434, 4453, 4491, as amended, sec. 14, 29 Stat. 690, sec. 10, 35 Stat. 428, 41 Stat. 305, secs. 1, 2, 49 Stat. 1544, sec. 17, 54 Stat. 166, sec. 3, 54 Stat. 346, sec. 2, 54 Stat. 1028, as amended, Pub. Law 569, 83d Cong.; 46 U. S. C. 361, 362, 391, 391a, 392, 399, 404–409, 411, 412, 435, 489, 366, 395, 363, 367, 536p, 1333, 463a; E. O. 10402, 17 F. R. 9917; 3 CFR, 1952 Supp.

ITEM III—INFLAMMABLE OR COMBUSTIBLE LIQUIDS HAVING TOXIC OR LETHAL CHARACTERISTICS; TANK VESSELS

11. At the September 1954 public hearing certain minor changes were considered with respect to the transportation of inflammable or combustible liquids having lethal characteristics. These proposed changes are being held in abeyance pending a complete review of the regulations in 46 CFR Part 39. A request has been received to permit the transportation of a chemical designated as "DD" which is a class B poison having a negligible vapor pressure. The proposal is to amend 46 CFR Part 39 to permit the transportation of certain class B poisons in bulk, as well as to restrict the shipment of certain inflammable or combustible liquids, other than class B or class C poisons, which have sufficient toxicity as to create an undue hazard to life. The proposed amendment to 46 CFR Part 39 is a complete revision of the requirements and will bring it up to date.

12. The authority for regulations regarding tank vessels is in R. S. 4405, as amended, 4417a, as amended, 4462, as amended; 46 U. S. C. 375, 391a, 416. These regulations interpret or apply sec. 3 (c) of Public Law 569, 83d Congress, and Executive Order 10402, 17 F. R. 9917, 3 CFR, 1952 Supp.

ITEM IV—HATCH CLOSING DEVICES; PASSENGER, CARGO, AND MISCELLANEOUS VESSELS

13. It is proposed to amend 46 CFR 78.17–35 and 97.15–20, regarding hatches and other openings to specifically require the use of closure devices and assignment of responsibility. The intent of these proposed regulations is to require the effective use of closure devices required by the Load Line Regulations when navi-